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WHITEPAPER · UPDATED EDITION, OCTOBER 2026

The Most Important HR Rules & Regulations in 2026

The Netherlands

A practical guide for international employers, updated with everything that has been adopted or planned for 2027 & 2028 and how to stay on top of it.

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What is new in this edition

- **A timeline to 2028:** what is already in force, what is adopted and what is still only proposed with the dates that matter.
- **Four new chapters:** the 27% ruling, freelancers and agency work, the pension transition and AI in HR.
- **Pay transparency, flex contracts and sickness absence** brought up to date, including what employers can expect next.
- **From rules to practice:** how the HRhelp platform (policy library, the AI assistant Lisa and HR Help consultants behind it) turns these rules into something your people can actually use.
- **A 90-day checklist** to get your contracts and policies ready.

Status as of 27 October 2026. Where a measure is not final, we say so. Sources are listed on the last page.

KEY TAKEAWAYS FOR INTERNATIONAL EMPLOYERS

- ✓ **Dutch employment law strongly protects employees.** Dutch law looks at the reality of the working relationship. Not only at the contract wording.
- ✓ **Documentation and compliance are critical.** A missing step in a sickness or dismissal file is expensive and slow to repair.
- ✓ **CAOs and case law significantly impact HR practice.** Always check whether a collective agreement applies to you.
- ✓ **Early legal and HR advice reduces risk and cost.**
- ✓ **New: 2027 and 2028 bring a wave of changes.** The 27% ruling, pay transparency, flexible contracts and pensions all need updated contracts and policies months before the date.
- ✓ **New: a rule only helps if people can find and follow it.** An up-to-date handbook, an easy way to get the answer and proof that a policy was read are what hold up in an audit or dispute.

WHAT CHANGES AND WHEN

Date	What	Status
31st of Dec 2026	Agency workers must receive at least equal working conditions to comparable directly employed staff (Wet meer zekerheid flexwerkers). The legal presumption of employment for freelancers paid under an hourly rate of € 38 starts the same day.	**Adopted**
1st of Jan 2027	The 30% ruling becomes the 27% ruling for new cases and for existing cases that first qualified from 2024. Higher salary threshold for new cases.	**Adopted**
2027 (date open)	Pay transparency (EU directive): pay information in vacancies, no questions about previous pay and right to information. The EU deadline was 7th of June 2026. The Dutch bill is before parliament (plenary debate planned for 11th of January 2027) and the target of 1st of January 2027 now looks out of reach. The date is not yet final.	**Planned**
1st of Jan 2027	Youth minimum wage rises for ages 15 to 20. Employer premiums change (Aof and Whk up). Licensing regime for temporary-work agencies (Wtta) starts. Fines for hirers using unlicensed agencies follow from 1st of Jan 2028.	**Adopted (premiums provisional)**
2nd of Dec 2027	High-risk AI obligations under the EU AI Act including AI used in recruitment and employee evaluation were postponed to this date (political agreement 2026).	**Agreed**
1st of Jan 2028	Main provisions of the flex law: bandwidth contracts replace zero-hours and min-max contracts and a new chain rule applies. Deadline for the move to the new pension system.	**Adopted**
1st of Jan 2028	Verlofwet (care leave merged into one scheme) and a Zelfstandigenwet for freelancers.	**Proposed**
Not dated	Cabinet is exploring changes to sick pay and a review of the Wet verbetering poortwachter (more information expected end of 2026).	**Proposed**

1. EMPLOYMENT CONTRACTS

> **Key risk for international employers**
>
> Dutch law prioritises the reality of the working relationship over contract wording. Local compliance is critical, even for global templates.

Types of contracts

- **Permanent (indefinite) contracts:** the default form of employment.

- **Fixed-term contracts:** limited to 3 contracts within 3 years. Going beyond that converts the contract into a permanent one (chain rule) with limited exceptions (for example CAOs and seasonal work). A new contract after a gap of more than 6 months starts the count again. **From 1st of January 2028 that gap becomes 3 years.**
- **On-call contracts** (zero-hours and min-max): stricter rules apply. After 12 months the employer must offer a contract with fixed hours based on the average worked. **From 1st of January 2028 zero-hours contracts are replaced by bandwidth contracts.**
- **End of a fixed-term contract:** the employer must notify the employee in writing between 3 and 1 months before the end date (for contracts of 6 months or longer). If not compensation of up to one month's salary is due.

New: the flex law (Wet meer zekerheid flexwerkers) adopted july 2026

- **Chain rule:** after three temporary contracts the same worker can only be rehired after a gap of 3 years (now 6 months). Students and pupils with a side job of up to 16 hours a week keep the 6-month gap. Seasonal work keeps a possible 3-month interruption.
- **Bandwidth contracts:** the gap between minimum and maximum hours may be at most 30%. Workers may refuse calls above the maximum and if there is structurally more work, the employer must offer a contract with more hours. Exceptions apply to side jobs of people who receive a state pension and to pupils and students.
- **Agency workers:** equal working conditions from 31st of December 2026. The main provisions apply from 1st of January 2028.
- **What to do now:** list your zero-hours, min-max and repeated temporary contracts and plan the conversion before 2028.

Mandatory contract elements

- Job role and duties
- Working hours and location
- Salary and payment frequency (minimum wage applies)
- Holiday entitlement
- Notice periods
- Applicable Collective Labour Agreement (CAO), if any

2. WORKING TIME & LEAVE

Working hours

- Maximum 12 hours per shift and 60 hours per week (incidental).
- Average maximum of 48 hours per week over a 16-week period.

- Mandatory rest: 11 consecutive hours per 24 hours.

Statutory leave

- **Holiday leave:** minimum 4× the weekly working hours per year (for example 20 days for full-time).
- **Public holidays:** not statutory, depends on the contract or CAO.
- **Sick leave:** up to 104 weeks with reintegration obligations (see chapter 4).
- **Maternity leave:** at least 16 weeks.
- **Partner leave:** 1 week fully paid plus up to 5 weeks partially paid.
- **Parental leave:** partly paid (the first 9 weeks) and the remainder unpaid.

> **On the horizon: the Verlofwet (proposed for 1st of January 2028)**
>
> The bill would merge care leave into one scheme of eight weeks, two of them paid at 70% of wages and six unpaid. It still needs parliamentary approval. Policy texts on leave will need a review when it passes.

3. PAY, MINIMUM WAGE & BENEFITS

> **Note for international employers**
>
> Global compensation structures must be localised to meet Dutch statutory and CAO (CLA) requirements.

Minimum wage

- The statutory minimum wage applies to all employees aged 21 and older. Employees aged 15 to 20 are entitled to a percentage of it (the youth minimum wage). Both are adjusted twice a year by the government.
- **From 1st of January 2027 the youth percentages go up:** age 20 from 80% to 87.5%, age 19 from 60% to 75%, age 18 from 50% to 62.5%, age 17 from 39.5% to 50%, age 16 from 34.5% to 40% and age 15 stays at 30%. The lower rate for 18 to 20-year-olds in a work-learn track is abolished.

Salary payment rules

- Must be paid at least monthly. Payslips are mandatory.
- Deductions are only allowed under strict legal conditions.

Benefits

- **Holiday allowance:** minimum 8% of gross annual salary.
- **Pension:** often mandatory via sector pension funds (see chapter 11).
- Additional benefits may be required by CAO.

Employer cost in 2027 (provisional rates)

Premium	2026	2027
Aof, small employers	6.27%	6.67%
Aof, large employers	7.63%	8.03%
Whk, WGA (national average)	0.96%	1.07%
Whk, Ziektewet-flex (national average)	0.56%	0.60%
Zvw employer levy	6.10%	6.27%
AWf, low / high	2.74% / 7.74%	unchanged

Your own Whk rate comes from the Belastingdienst. Final premiums are confirmed later in the year.

4. SICKNESS, DISABILITY & REINTEGRATION

> **High-risk area for foreign employers**
>
> Dutch sickness law is one of the most employer-burdened systems in Europe and is often underestimated by international companies.

Employer obligations

- Pay at least 70% of salary during sickness (often 100% in the first year via the CAO).
- Actively support reintegration (Wet verbetering poortwachter, the Gatekeeper Act).
- Work with an occupational health service (arbodienst).

Employee obligations

- Cooperate with reintegration efforts.
- Follow reasonable medical and work-related instructions.

Failure to comply can lead to salary sanctions (the UWV can extend the wage payment obligation by up to 52 weeks, so into a third year) and further penalties.

What is new

- **Absence is high.** CBS reports sickness absence of 5.8% in the first quarter of 2026 against a long-term average of 5.0% for that period. For companies with 100 or more employees it was 6.8% and for 10 to 100 employees 5.0%.
- **Reform is being explored, not decided.** The cabinet is looking at limiting above-statutory sick pay, shortening the two-year period, a collective scheme for small employers in the second year, a lower maximum wage sanction (26 instead of 52 weeks) and simpler dismissal after long incapacity. None of this has a date. A review of the Wet verbetering poortwachter is expected to report at the end of 2026.
- **The compensation for transition payments after long-term incapacity stays for now.** Abolition has been postponed to 2028.

Practical point: until the rules change, the current rules apply in full. A complete dated reintegration file is the best protection.

5. TERMINATION OF EMPLOYMENT

Dismissal routes

- **UWV:** economic reasons or long-term illness.
- **Subdistrict court:** personal grounds (performance, misconduct, relationship issues).
- **Mutual termination agreement** (vaststellingsovereenkomst): common in practice.

Notice periods

- **Employer:** 1 to 4 months depending on length of service.
- **Employee:** usually 1 month, unless otherwise agreed.

Transition payment

- Mandatory for employees dismissed by the employer and in some cases when a fixed-term contract is not renewed.
- Accrues from day one of employment.

A weak file or the wrong route is expensive and slow to repair. Choose the route first, then build the file.

6. WORKS COUNCILS, WHISTLEBLOWING & EMPLOYEE REPRESENTATION

- Companies with **50 or more employees** must establish a Works Council (OR).

- The OR has advisory and consent rights on key HR decisions such as changes to working hours, pay systems, sickness absence policy and employee monitoring.
- Smaller companies may have employee representation bodies.
- **Whistleblowing:** employers with 50 or more employees must have an internal reporting procedure and follow up on reports within the legal timeframes. The procedure must be approved by the works council where one exists.

7. EQUAL TREATMENT, PAY TRANSPARENCY & PRIVACY

Equal treatment

- Discrimination based on gender, age, disability, religion, sexual orientation and similar grounds is prohibited.
- Equal pay for equal work.

Pay transparency (EU directive)

> **Status**
>
> The EU directive had to be implemented by 7th of June 2026 and the European Commission rejected a Dutch request to postpone. The Dutch bill went to the House of Representatives in May 2026. A committee meeting is planned for 14th of December and the plenary debate for 11th of January 2027, after which the Senate still has to vote. The official aim is still 1st of January 2027, but that now looks unachievable and the date is not final. Some details, such as the reporting thresholds, are still being settled.

- **Recruitment:** vacancies and job titles must be gender-neutral with the starting salary or salary range stated up front. Asking applicants about their previous pay will no longer be allowed.
- **Right to information:** employees can ask for their own pay and the average pay by gender for comparable roles. Employers must inform staff of this right every year.
- **Reporting:** larger employers will have to report on the gender pay gap. A gap of 5% or more within a job category that is not justified or resolved within six months leads to a mandatory pay evaluation and action plan.
- **Fines:** non-compliance can lead to administrative fines.
- **What to do now:** check that your salary scales and job levels are documented and can be explained and that vacancy texts are ready to carry a pay range.

Privacy and GDPR

- Strict limits on processing employee personal data.
- Monitoring (email, cameras) only under clear conditions.
- Medical data is handled exclusively by occupational physicians.

- Employees have the right to access and erasure of their own data.

8. COLLECTIVE LABOUR AGREEMENTS (CAOS)

- CAOs can override or supplement statutory law (within legal limits).
- They may be mandatory for certain sectors.
- Always verify whether a CAO applies to your organisation.

9. INTERNATIONAL TALENT: THE 27% RULING

The 30% ruling is a tax-free allowance for employees recruited from abroad. From 1st of January 2027 the maximum falls to **27%** of salary.

Employee first qualified	Maximum tax-free allowance
Before 1st of January 2024	30% for the rest of the ruling period (up to 5 years)
From 1st of January 2024 to 31st of December 2026	30% through 2026, then **27%** for the rest of the ruling period
From 1st of January 2027	**27%**

- **Salary threshold for new cases from 2027:** € 50,436 per year excluding the allowance (a lower threshold applies to employees under 30 with a qualifying master's degree). Thresholds are indexed every year.
- **27% is a maximum.** A lower percentage applies if the salary does not support it. This is a common source of payroll errors.
- **What to do now:** list every employee on the ruling, note the date they first qualified and tell them in good time what the change means for their net pay.

10. FREELANCERS AND AGENCY WORK

- **Presumption of employment:** a freelancer paid under an hourly rate of € 38 (the indicative 2026 level indexed from now on) can claim in court that the relationship is an employment relationship. The client then has to prove that it is not. The presumption is adopted and applies from 31st of December 2026 also to relationships that already exist.
- **Paying slightly more does not solve it.** The assessment of the relationship itself stays the same.
- **Enforcement is real.** The Belastingdienst has been enforcing against false self-employment since 2025 and can impose penalty fines from 2026. The clarifying part of the earlier VBAR bill was dropped, and a separate Zelfstandigenwet is planned to give advance clarity (proposed for 1st of January 2028, still in consultation).

- **Agency work:** equal working conditions for agency workers from 31st of December 2026 and a licensing regime for temporary-work agencies (Wtta) from 1st of January 2027. Hirers using unlicensed agencies can be fined from 1st of January 2028.
- **What to do now:** review every freelancer on a long-term, full-time or open-ended assignment and write down the assessment.

11. PENSIONS: THE TRANSITION TO THE NEW SYSTEM

- The Wet toekomst pensioenen requires pension schemes to move to the new system by **1st of January 2028**.
- Employers with an insured pension scheme must submit their transition plan by **1st of October 2027**.
- Your employees will ask what changes for them. The answers need to be consistent across the handbook, the contract and the pension provider's communication.
- The AOW (state pension) age stays at 67 in 2027 and goes up to 67 and 3 months in 2028.

12. AI IN HR: WHAT THE EU AI ACT MEANS FOR EMPLOYERS

- **Already applicable since February 2025:** a ban on certain AI practices (including emotion recognition at work) and the duty to make sure staff who work with AI have a sufficient level of AI literacy.
- **High-risk AI in employment** (for example recruitment screening and employee evaluation): the main obligations were due on 2nd of August 2026 and have been postponed to **2nd of December 2027** by an agreement reached in 2026. A postponement is not a repeal.
- **What to do now:** keep an inventory of the AI tools used in HR, know what each one does with employee data and keep people in charge of decisions about hiring, evaluation and dismissal.

FROM RULES TO PRACTICE: THE HRHELP PLATFORM

Knowing the rules is half of it. The other half is that managers and employees can find the answer, that the handbook is current and that you can show who read what. That is what the HRhelp platform is for. It is the HR knowledge platform of HR Help, an Amsterdam HR consultancy, built for Dutch companies with 50 to 500 employees.

Building block	What it does
Policy library	Leave, absence, expenses, conduct, privacy and more written to Dutch employment law and maintained by HR Help. You add your own rules. Every change is versioned and approved by a second admin before it goes live.
Lisa, the AI assistant	Employees ask in Dutch or English at any hour. Lisa answers only from your published policy and shows the source. If the policy does not cover the question, she says so and offers to pass it on.
My Requests	Leave, expenses and training requested in one place. Managers approve from their dashboard. HR sees status and history.
Proof when it counts	See per policy who has acknowledged it and export the report as a PDF. Contracts can be signed online. Every change is in an exportable audit log.

A chatbot never gets the last word

- **Step 1, Lisa:** answers from your policy with the source.
- **Step 2, your HR team:** one click turns the chat into a ticket with question and answer attached.
- **Step 3, an HR Help consultant:** for dismissals long-term absence and difficult contract questions in the same thread.
- **Grievances skip the ladder.** They go into a confidential ticket that no AI reads and that only HR Help's consultants can open.

How it connects to what is changing

Challenge	How the platform helps	Where an HR Help consultant steps in
Flex law and new contract rules (2027–2028)	The policy library keeps flex and contract policy current and versioned. Acknowledgement reports show who has read the updated text.	Review of contract templates and flex policy (HR Reset); a named advisor for individual cases (HRhelp+).
Pay transparency (2027)	Salary & Payroll holds your salary scales and salary explanation in one place and the Recruitment module covers internal vacancies. Lisa answers employees' policy questions in their own language.	Pay policy and vacancy wording; handling of individual information requests.
Sickness absence and reintegration	The absence and illness policy is always the current version. A question about a sick employee moves to HR or a consultant with the full thread attached and the audit log records what was done.	Long-term absence, reintegration files and the route to dismissal.
Whistleblowing for 50+ employees	The Grievance & Confidential module covers complaints, the confidential counsellor and whistleblowing. It is handled by people with the AI switched off.	Independent handling by HR Help's consultants outside your own organisation.
Works council and audit questions	Policy history, approvals and the acknowledgement report give you evidence instead of "we emailed it round".	Preparing consultation material for the works council.
Expats and the 27% ruling	Employees ask Lisa in English. Salary & Payroll explains how pay is built up.	Eligibility checks and the transition for existing employees.
Pension transition (2028)	Compensation & Benefits holds the pension policy; employees get consistent answers with the source.	Review of contracts and communication.
Freelancers and agency work	Contracts can be signed online with name, time and IP recorded.	Assessment of long-term assignments; contract questions.
AI in HR	Lisa answers only from your own published policy with the source and never handles confidential tickets. Data is stored in the EU (Frankfurt), separated per company and you can connect your own AI key.	Questions on which tools in your HR process are in scope.

One flat price per module, per company, not per employee. Escalation, the confidential channel, the audit trail and GDPR export and erasure are included in every configuration. Prices and modules are on the platform one-pager.

YOUR NEXT 90 DAYS

#	Action	Why now
1	List all zero-hours, min-max and repeated fixed-term contracts and plan conversions.	Flex law, 1st of Jan 2028
2	Check every employee on the 30% ruling: first qualifying date and expected net pay change.	27% ruling, 1st of Jan 2027
3	Document salary scales and job levels; prepare vacancy texts with a pay range.	Pay transparency, date not yet final
4	Review freelancers on long-term assignments and record your assessment.	Presumption of employment, 31st of Dec 2026
5	Check that your sickness absence procedure and reintegration files are complete and dated.	Absence at 5.8% reform under discussion
6	Confirm you have an internal whistleblowing procedure if you have 50 or more employees.	Wet bescherming klokkenluiders
7	Ask your pension provider about the transition plan and its deadline.	Plan due 1st of Oct 2027 switch by 1st of Jan 2028
8	Make an inventory of the AI tools used in HR.	AI Act, high-risk rules from 2nd of Dec 2027
9	Update payroll for the new premiums and the youth minimum wage.	1st of Jan 2027
10	Check that your handbook is current, available in English and that you can show who has read it.	Every audit and dispute

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SOURCES AND NOTES

This whitepaper is a high-level overview and not legal advice. It reflects the situation on 27th of October 2026. Figures for 2027 are provisional where stated and bills can change before they are adopted.

- Wet meer zekerheid flexwerkers adopted by the Senate on 7th of July 2026: SRA, 16th of July 2026, sra.nl
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- Employer premiums, youth minimum wage, Verlofwet, pensions, Wtta, Zelfstandigenwet and pay transparency date: Randstad, "Prinsjesdag 2026", randstad.nl; Brightmine, brightmine.com/nl
- Pay transparency bill: Loyens & Loeff, 19th of June 2026; CMS Netherlands, 29th of April 2026; Salaris Vanmorgen, 11th of May 2026; PwC Netherlands, 19th of December 2025
- Presumption of employment and enforcement: Salaris Vanmorgen, 8th of June 2026; PwC Netherlands, "Kabinetskoers zelfstandigen", April 2026
- Sickness absence: CBS, news release of June 2026 (first quarter of 2026); sick pay scenarios: Stolwijk Kennisnetwerk
- EU AI Act postponement for high-risk employment AI: Ogletree Deakins, 2026